

26STCP01702 26STCP01702

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Case Number: 26STCP01702 Hearing Date: July 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

IN RE:

2514 EXPOSITION

PLACE, LOS ANGELES, CA 90018

Case No.:

26STCP01702

Hearing Date:

July 14, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PETITIONER TOTAL

LENDER SOLUTIONS, INC.'S MOTION FOR ORDER DEPOSITING SURPLUS PROCEEDS FROM
THE SALE AND DISCHARGING PETITIONER; SETTING HEARING ON DISTRIBUTION OF

SURPLUS PROCEEDS; DIRECTING THE CLERK TO DISCHARGE THE PETITIONER UPON
DEPOSIT OF THE SURPLUS PROCEEDS

Background

On May 1, 2026, Petitioner Total Lender Solutions, Inc. ("Petitioner") filed the instant petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale with respect to real property located at 2514 Exposition Place, Los Angeles, California 90018. (Pet., ¶ 2.)

On May 11, 2026, Petitioner filed the instant motion requesting an order depositing surplus proceeds from the sale and discharging Petitioner, setting a hearing on distribution of surplus proceeds, and directing the clerk to discharge Petitioner upon deposit of the surplus proceeds. Petitioner makes this motion pursuant to Code of Civil Procedure section 2924j.

On May 21, 2026, Non-Party St. John of God Retirement and Care Center's ("SJOG") filed a claim to surplus proceeds of trustee's sale. SJOG seeks that the Court "[o]rder the release of all of or a portion of the available surplus funds resulting from the foreclosure sale of the Property to SJOG pursuant to California Civil Code §2924k(a); and such further relief as this Court deems just and proper." (Not. of Claim, i:23-25.)

Request for Judicial Notice

The Court grants
Petitioner's request for judicial notice of Exhibit 1.

Legal Standard

"[W]ithin thirty days of the of the execution of the trustee's deed resulting from a sale in which there are proceeds remaining after payment of the amounts required by paragraphs (1) and (2) of subdivision (a) of Section 2924k," the trustee must send written notice to individuals who had a recorded interest in the real property prior to the trustee's sale. (Civ. Code, § 2924j, subd. (a).) This allows those individuals to "contact the trustee at the address provided in the notice to pursue any potential claim" to

the surplus funds. (Civ. Code, § 2924j, subd. (a)(3).)

Claimants have 30 days to make a claim. (Civ. Code,

§ 2924j, subd. (a)(4).) Once claims are received, the trustee must “exercise

due diligence to determine the priority of the written claims.” (Civ. Code, § 2924j, subd. (b).) If “there is no dispute

as to the priority of the written claims submitted to the trustee, proceeds

shall be paid within 30 days after the conclusion of the notice period. If the

trustee has failed to determine the priority of written claims within 90 days

following the 30-day notice period, then within 10 days thereafter the trustee

shall deposit the funds with the clerk of the court pursuant to subdivision (c).”

(Ibid.)

Civil Code section

2924j, subdivision (c) provides that “[i]f, after due diligence, the

trustee is unable to determine the priority of the written claims received by

the trustee to the trustee’s sale surplus of multiple persons or if the trustee

determines there is a conflict between potential claimants, the trustee may

file a declaration of the unresolved claims and deposit with the clerk of the

superior court of the county in which the sale occurred, that portion of the

sales proceeds that cannot be distributed, less any fees charged by the clerk

pursuant to this subdivision. The declaration shall specify the date of the

trustee’s sale, a description of the property, the names and addresses of all

persons sent notice pursuant to subdivision (a), a statement that the trustee

exercised due diligence pursuant to subdivision (b), that the trustee provided

written notice as required by subdivisions (a) and (d), and the amount of

the sales proceeds deposited by the trustee with the court. Further, the

trustee shall submit a copy of the trustee’s sales guarantee and any information

relevant to the identity, location, and priority of the potential claimants

with the court and shall file proof of service of the notice required by

subdivision (d) on all persons described in subdivision (a).”

Thereafter, “[t]he clerk shall deposit

the amount with the county treasurer or, if a bank account has been established

for moneys held in trust under paragraph (2) of subdivision (a) of Section 77009 of the Government Code, in that account,

subject to order of the court upon the application of any interested party. The

clerk may charge a reasonable fee for the performance of activities pursuant to

this subdivision equal to the fee for filing an interpleader action pursuant to

Chapter 5.8 (commencing with Section 70600) of

Title 8 of the Government Code. Upon deposit of that portion of the sale

proceeds that cannot be distributed by due diligence, the trustee shall be

discharged of further responsibility for the disbursement of sale proceeds. A

deposit with the clerk of the court pursuant to this subdivision may be either for the total proceeds of the trustee's sale, less any fees charged by the clerk, if a conflict or conflicts exist with respect to the total proceeds, or that portion that cannot be distributed after due diligence, less any fees charged by the clerk." (Civ. Code, § 2924j, subd. (c).) "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein." (Civ. Code, § 2924j, subd. (d).)

Discussion

Petitioner makes an application to deposit surplus funds, pursuant to Civil Code section 2924j, subdivision (c), because the sale of the property "resulted in the receipt of funds that exceeded the amount of the funds due and owing under the Deed of Trust as foreclosed upon." (Notice of Mot., 2:1-3.) Petitioner explains that it "is the Trustee under a Deed of Trust executed by Wesley L. Todd and Doris J. Todd, Husband and Wife, as joint tenants," but "Petitioner is informed and believes that the Former Trustors are deceased." (Wilkinson Decl., ¶¶ 3-4.)

Petitioner explains that "[o]n November 4, 2025, pursuant to Civil Code 2924j(a), Petitioner sent written notice to all persons with a recorded interest in the Property as of the date immediately prior to the trustee's sale who would be entitled to notice." (Mot., 2:27-3:4.) Petitioner received one claim from Gary A. Todd who "is the named Successor Trustee of the Wesley Todd and Doris J. Todd family Trust per the certification of Trust executed on August 23, 2016." (Pet., ¶ 12, Attach. 12.) Petitioner states that "[p]ursuant to a title search there are liens superior to Claimant. However, the Claimant is disputing all liens senior to his claim." (Ibid.)

Petitioner explains that "[t]he potential claimant in order of entitlement is A1 Solar Power, Inc. ('A1 Solar'), pursuant to a Deed of Trust recorded on January 27, 2015, Instrument No. 20150094853 of official records." (Mot., 3:17-19.) "The second potential claimant in order of entitlement is [SJOG]..., pursuant to an Abstract of Judgment recorded on February 3, 2023, Instrument No. 20230072799 and on November 12, 2024 Instrument No. 20240778810 of official records." (Mot., 3:24-27.)

The Court finds that Petitioner complied with the relevant procedural requirements under Civil Code section 2924j, subdivision (c). Petitioner's declaration states that the sale occurred on October 7, 2025, and Petitioner attaches a description of the property to the petition. (Pet., ¶¶ 2, 4, Attach. 2.) Petitioner also submitted a copy of the Trustee's Sale Guarantee ("TSG") with information relevant to identifying the property. (Pet., ¶ 5, Attach. 5.) Petitioner provided notice of the surplus proceeds to all possible interested persons pursuant to subdivision (a), included their names and addresses, and provided proof of service. (Pet., ¶¶ 8, 13, Attach. 8, 13.)

Further, Petitioner provided the amount of the sales proceeds to be deposited with the Court. The petition shows the property sold for \$601,000. (Pet., ¶ 16a.) The available surplus proceeds, after paying 331,564.89 in debt to the foreclosing creditor, as required by Civil Code section 2924k (a)(1)-(2), is \$269,435.11. (Pet., ¶¶ 7, 16b-c.) Petitioner seeks \$7,600.50 in attorney fees and \$495 in costs due to the filing fee. (Pet., ¶¶ 16e, g.) Accordingly, Petitioner seeks to deposit \$261,339.61. (Pet., ¶ 16h.) The Court finds the information provided sufficient to grant Petitioner's motion and sets a hearing on the disbursement of funds, as noted below.

SJOG asserts that it "is entitled to all or a portion of the surplus proceeds resulting from the trustee's sale of the Property since it has priority over other judgment creditors, as supported by the TSG attached to the Petition." (Claim, 2:17-19.) The Court notes that SJOG's claim to the surplus funds will be heard at the hearing on distribution of the surplus funds.

Civil Code section 2924k, subdivisions (a)(1) and (b) provide that Petitioner is entitled to priority of the proceeds from the sale for attorney fees, costs, and expenses incurred in exercising the power of sale and of sale, as well as "expenses incurred for such items as mailing and a reasonable fee for services rendered in connection with the distribution of the proceeds from a trustee's sale." Petitioner's counsel files a declaration seeking attorney fees and costs in the amount of \$7,600.50, plus the filing fee of \$495, for a total of \$8,098.50. (Wilkinson Decl. ¶¶ 11-12; Ex. 3.) The Court finds attorney fees and costs are reasonable. However, the Court notes that Exhibit 3 lists the total amount due in attorney fees and expenses as \$7,418.00, yet Petitioner's counsel does not explain this discrepancy. Accordingly, the Court grants Petitioner costs in the amount of

\$7,913 (\$7,418 + \$495), unless Petitioner explains to the Court at the hearing on the instant motion that Petitioner actually incurred expenses amounting to \$7,600.50.

Conclusion

Based on the foregoing, Petitioner's motion is GRANTED. The Court directs that the surplus proceeds from the sale be deposited with the Court. Pursuant to Civil Code section 2924j, subdivision (c), the Court orders that the clerk deposit the amount with the county treasurer or, if a bank account has been established for moneys held in trust under paragraph (2) of subdivision (a) of Section 77009 of the Government Code, in that account.

The Court sets a hearing on the distribution of the surplus funds for within 90 days from the clerk's deposit, on _____, 2026 at 10:00 a.m. in Dept. 508. Pursuant to Civil Code section 2924j, subdivision (d), the clerk will serve written notice of the hearing by first-class mail on all claimants identified, and the Court will consider all claims filed at least 15 days before the hearing date.

Given that Petitioner demonstrated due diligence and complied with the relevant procedural requirements, the Court discharges Petitioner "of further responsibility for the disbursement of sale proceeds." (Civ. Code, § 2924j, subd. (c).) The Court awards Petitioner attorney fees and costs in the amount of \$7,913.00.

The clerk will provide notice to all identified interested parties, noted below (see Pet., Attach. 8):

Wesley L.

Todd

2514

Exposition Place

Los Angeles,

CA 90018

Doris J. Todd

2514

Exposition Place

Los Angeles,
CA 90018

Wesley L.
Todd, Trustee

2514
Exposition Place

Los Angeles, CA
90018

Wesley L.
Todd, Trustee

C/O The Bank
of Tokyo of California

Crenshaw
Branch

3501 West
Jefferson Blvd.

Los Angeles,
CA 90018

Doris J.
Todd, Trustee

2514
Exposition Place

Los Angeles,
CA 90018

Doris J.
Todd, Trustee

C/O The Bank of
Tokyo of California

Crenshaw
Branch

3501 West
Jefferson Blvd.

Los Angeles,
CA 90018

Kathy Todd

2514
Exposition Place

Los Angeles,
CA 90018

Gary Todd

2514
Exposition Place

Los Angeles,
CA 90018

Charlene L.
Todd

2514
Exposition Place

Los Angeles,
CA 90018

Dvonte W.
Todd

2514

Exposition Place

Los Angeles,

CA 90018

Secretary of

Housing and Urban Development

451 Seventh

Street, S.W.

Washington,

Dc 20410

Secretary of

Housing and Urban Development

C/O Wells

Fargo Bank, N.A.

1003 E. Brier

Drive, X0501-04G

San

Bernardino, CA 92408-2862

Secretary of

Housing and Urban Development

C/O WFHM Final

Docs X2599-024

405 SW 5th

Street

Des Moines, IA

50309-4600

Secretary of

Housing and Urban Development

C/O Premier

Reverse Closings

5828 Lonetree

Bld.

Rocklin, CA

95765

A1 Solar

Power, Inc.

15025 Oxnard

St., Suite 200

Van Nuys, CA

91411

City of Los

Angeles Bureau of Engineering Real Estate Division

1149 S

Broadway, Suite 610

Los Angeles,

CA 90015

St. John of

God Retirement and Care Center

2468 South

St. Andrews Place

Los Angeles,

Ca 90018

St. John of

God Retirement and Care Center

C/O Clark
Hill LLP

555 South
Flower Street, Suite 2400

Los Angeles,
CA 90071

St. John of
God Retirement and Care Center

C/O Kahana
& Feld LLP

2603 Main
Street, Suite 900

Irvine,
CA 92614

DATED: July 14, 2026 _____

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court